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Germany: IKB Deutsche Industriebank Emergency Liquidity Program, 2008¹

Ayodeji George² and Sophia Alden³

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Abstract

In the summer of 2007, IKB Deutsche Industriebank (IKB) faced heavy losses owing to the liquidity support it had provided on commercial paper issued by Rhineland Funding Capital Corporation, its off-balance-sheet vehicle, which held distressed collateralized debt obligations backed by US subprime mortgages. In July 2007, authorities became aware that IKB itself had lost access to liquidity from Deutsche Bank and other funding partners. Publicly owned development bank Kreditanstalt für Wiederaufbau (KfW) held a 38% stake in IKB, exposing it to potentially heavy losses in the event of an IKB failure. KfW, German financial authorities, and German banks pursued a series of intervention measures in 2007 and early 2008, including asset guarantees and capital injections. While implementing intervention measures and negotiating a sale of its stake, KfW provided two liquidity facilities, one in January 2008 and the other in July 2008, allowing IKB to access up to EUR 3 billion of liquidity. Two large American banks and two regional German banks also provided liquidity facilities. KfW ultimately sold its stake in IKB to American private equity firm Lone Star at a significant loss on October 29, 2008. KfW had permitted its liquidity facilities to last until March 2011, but IKB terminated its use of the facilities early in 2010.

Keywords: asset-backed securities, Germany, Global Financial Crisis, IKB, KfW

¹ This case study is part of a Yale Program on Financial Stability (YPFS) selection of New Bagehot Project modules considering ad hoc emergency liquidity provision. A survey of all the cases in this series (Kelly et al. 2025) and the individual cases underlying it are available from the *Journal of Financial Crises* at <https://elischolar.library.yale.edu/journal-of-financial-crises/vol7/iss1/>. Wiggins et al. (2022) surveys broad-based emergency liquidity programs.

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Overview

This case study is about the ad hoc emergency liquidity facilities provided to IKB Deutsche Industriebank (IKB) in 2008. For information on the several capital injections to the bank between 2007 and 2008, see Swaminathan and Vala (2024).

IKB was a German commercial bank that generally specialized in lending to midsize German businesses. In 2002, it created Rhineland Funding Capital Corporation (Rhineland), an off-balance-sheet vehicle that funded itself using short-term commercial paper to purchase long-term asset-backed securities (ABS). By the end of June 2007, IKB had provided liquidity puts on EUR 8.1 billion (USD 10.8 billion)⁴ of Rhineland’s commercial paper. German regulators did not require IKB to hold any capital against potential Rhineland losses (FCIC 2011).

In July 2007, IKB became the first bank to fall victim to deterioration in the ABS market when short-term funding partners such as Goldman Sachs refused to sell Rhineland commercial paper to clients.⁵ Deutsche Bank similarly cut off IKB’s credit lines and alerted German authorities of the critical state of IKB’s business (for a timeline of events, see Figure 1) (FCIC 2011). Though IKB itself was not large enough to be systemically important, its largest shareholder was: Kreditanstalt für Wiederaufbau (KfW), a state-owned development bank. The failure of IKB had the potential to impose disastrous losses on KfW, prompting it to begin negotiations on a public-private intervention (Mitchell 2016). On July 29, 2007, KfW, the

Key Terms

Purpose: KfW established the two facilities to provide liquidity to IKB while implementing other intervention measures and negotiating a sale of its stake in the bank	
Announcement Date	January 2008
Operational Date	January 24, 2008
Termination Date	Before June 24, 2010
Legal Authority	Article 2 (3) of the KfW Law
Administrator	KfW
Peak Authorization	EUR 3 billion across two facilities
Peak Outstanding	Unknown
Collateral	Commercial business loans
Haircut and Recourse	The first line was over-collateralized by about one-quarter; no information on the second line
Interest Rate and Fees	Based on EURIBOR; details are not public
Term	One-year term for private facilities; undisclosed termination date for KfW facilities, eventually extended after sale agreement with Lone Star
Part of a Package	The emergency liquidity facilities followed a significant capital injection and preceded a restructuring and sale of business
Outcomes	The liquidity lines were terminated in 2010
Notable Features	The liquidity line was available in euros or dollars; the aid provided by KfW was intended to keep IKB liquid ahead of its sale to Lone Star, rather than on the basis of systemic risk concerns

⁴ According to the Bank for International Settlements, EUR 1 = USD 1.35 on July 2, 2007.

⁵ Before the crisis, Goldman helped Rhineland raise money in the commercial paper market on a regular basis (FCIC 2011).

Federal Financial Supervisory Authority (BaFin), and the Federal Ministry of Finance organized a loss-sharing agreement, known as a risk shield. Under the agreement, KfW would take over IKB's EUR 8.1 billion liquidity facilities to Rhineland; it would also cover EUR 0.85 billion in indirect exposures that IKB had to Rhineland and up to EUR 1 billion of IKB's potential losses on a EUR 6.8 billion on-balance-sheet portfolio that consisted largely of subprime-linked securities. Three German banking associations—whose members included private banks, cooperative banks, savings banks, and state-owned banks—participated in the risk shield, which required them to absorb up to EUR 1 billion of any losses. However, IKB continued to face stress. German authorities mandated that KfW provide a EUR 2.3 billion capital injection to IKB, which came in the form of loans⁶ and equity (EC 2009).⁷

While implementing the capital injections and risk shield, KfW also provided liquidity support to IKB as authorities negotiated a sale of the bank (EC 2009; KfW 2009b). The first liquidity facility began on January 24, 2008, and authorized up to EUR 1.5 billion (EC 2009; IKB 2008). Authorities provided a second KfW facility on July 18, 2008, also for up to EUR 1.5 billion, which charged a different interest rate with the same collateral requirements. During this same period, IKB also received private liquidity facilities. One facility was provided by two large American banks for over EUR 750 million. Two German regional banks provided their own respective facilities, one for over EUR 250 million, and the other for over EUR 500 million (EC 2009).

KfW ultimately sold its shares in IKB to US-based private equity firm Lone Star on October 29, 2008 (see Figure 1 for a timeline of the events preceding this sale) (IKB 2009).

⁶ The loans provided to IKB were subject to a “better fortune clause”, which waived repayment to KfW unless IKB returned to profitability. For this reason, the loans were classified as capital under Germany's banking solvency rules (EC 2009).

⁷ A full account of the capital injections provided to IKB can be found in Swaminathan and Vala (2024).

Figure 1: Timeline of Liquidity Assistance Provided to IKB

Date	Event
July 2007	Short-term funding partners refuse to sell Rhineland paper to clients, and Deutsche Bank alerts German authorities to the critical state of IKB.
July 30, 2007	KfW announces that it will take over the liquidity line for Rhineland and other off-balance-sheet vehicles; it later announces banking associations that will also intervene to aid IKB through a risk shield.
Nov. 30, 2007	KfW and private partners expand the risk shield to IKB and announce capital injections.
Jan. 24, 2008	KfW provides an initial liquidity facility for IKB, authorized for up to EUR 1.5 billion.
July 18, 2008	KfW provides a second liquidity facility to IKB, authorizing the same amount as the first but at a higher interest rate.
Feb. 14, 2008	The German government mandates that KfW provide further capital injections to IKB.
Aug. 21, 2008	US private equity firm Lone Star announces that it will purchase IKB.
Oct. 29, 2008	Lone Star completes the purchase of IKB following EC approval.

Sources: Deutsche Bundesbank 2009; EC 2009; Mitchell 2016.

Summary Evaluation

Much of IKB's distress came from the fact that it continued to increase its exposure to structured mortgage-related securities well after many major market actors had identified the market as a potential source of distress (FCIC 2011).

An article written by the French academic Nicolas Véron finds fault in the decision-making of German authorities to intervene into IKB multiple times. Véron asserts that the German government intervened without gauging the full extent of the financial commitment, a result of poor coordination between the central bank, the BaFin, and the ministry of finance. He also finds fault in communication, stating that German authorities did not adequately explain the repeated (failed) intervention attempts and that the ministry of finance gave the impression that the sale of IKB would yield a profit (Véron 2008).

European Central Bank (ECB) and Vienna University of Economics and Business researchers also identify problems with standards for IKB's financial reporting, stating that there was a disconnect between financial reporting and regulation. Regulators determined IKB's regulatory capital requirements based on Germany's Generally Accepted Accounting Principles (GAAP), rather than International Financial Reporting Standards (IFRS). This is significant because IFRS reporting required the consolidation of conduits like Rhineland on a bank's balance sheet, while GAAP did not. As a result, German regulators did not require IKB to hold regulatory capital for its Rhineland liquidity facilities under the Basel I capital standard then in force (Georgescu and Laux 2015).

Context: Germany 2008–2009	
GDP (SAAR, nominal GDP in USD)	\$3.7 trillion in 2008
	\$3.4 trillion in 2009
GDP per capita (SAAR, nominal GDP in USD)	\$45,612.7 in 2008
	\$41,650.4 in 2009
Sovereign credit rating (long-term debt)	Moody's: Aaa in 2008
	S&P: AAA in 2008
	Fitch: AA+ in 2008
	Moody's: Aaa in 2009
	S&P: AAA in 2009
	Fitch: AA+ in 2009
Size of banking system	\$4.3 trillion in 2008
	\$4.1 trillion in 2009
Size of banking system as a % of GDP	115.7% in 2008
	119% in 2009
Size of banking system as a % of financial system	Data not available in 2008
	Data not available in 2009
Five-bank concentration of banking system	86.9% in 2008
	87.2% in 2009
Foreign involvement in banking system	12% in 2008
	12% in 2009
Existence of deposit insurance	Yes in 2008
	Yes in 2009

Sources: Bloomberg; World Bank Deposit Insurance Dataset; World Bank Global Financial Development Database.

Key Design Decisions

1. Purpose: KfW and private banks provided liquidity facilities to IKB to keep the bank afloat as authorities looked for a firm to buy the bank.

In the summer of 2007, IKB faced heavy losses owing to the liquidity support it had provided on commercial paper issued by its Rhineland off-balance-sheet vehicle, which held distressed collateralized debt obligations backed by US subprime mortgages (Moody's 2007). In July 2007, Deutsche Bank and other counterparties began to suspend transactions with IKB and alerted regulators to the bank's precarious position (EC 2009). The failure of IKB posed a particular threat to KfW, a publicly owned German development bank that held a 38% stake in IKB (EC 2009; Mitchell 2016, 78).

Authorities pursued several public-private intervention measures throughout 2007 and early 2008 (see Key Design Decision No. 2, Part of a Package) (Mitchell 2016, 78–80). To keep the bank liquid in preparation for its sale, KfW provided two collateralized liquidity facilities in January 2008 and July 2008, which allowed IKB to access up to EUR 3 billion of liquidity (KfW 2009b).

2. Part of a Package: The liquidity facilities followed several capital injections and preceded a sale of the bank.

After becoming aware of the problems at IKB in July 2007, authorities moved quickly to put together a public-private support program for the bank (FCIC 2011).

On July 31, 2007, a group of German regulatory bodies and banking associations collaborated with KfW to produce a risk shield for IKB (Mitchell 2016, 78). Under the arrangement, KfW would take over IKB's EUR 8.1 billion liquidity facilities to Rhineland; it would also cover EUR 0.85 billion in indirect exposures that IKB had to Rhineland and up to EUR 1 billion of IKB's potential losses on a EUR 6.8 billion on-balance-sheet portfolio that largely consisted of subprime-linked securities. Three German banking associations participated in the risk shield, which required them to absorb up to EUR 1 billion of any losses. KfW and other authorities announced a second risk shield on November 30, 2007, covering EUR 350 million. KfW provided EUR 150 million of this second guarantee, EUR 54.3 million of which took the form of a convertible bond. The conversion of this convertible bond into equity a few months later resulted in an increase in KfW's stake to 43% (EC 2009).

Despite the two previous interventions, IKB continued to show weakness in early 2008. Banking associations had less incentive to support another intervention because the primary motivation for saving IKB was the danger of its failure causing the failure of KfW, rather than the German banking system as a whole (Mitchell 2016, 80). Lacking full support from the banking associations, KfW provided a EUR 2.3 billion capital injection in February 2008, which brought its stake to 90.8% (EC 2009; Mitchell 2016, 80). This capital injection is discussed in greater detail in the corresponding YPFS case study (Swaminathan and Vala 2024).

3. Legal Authority: Its founding law governed KfW's operations and empowered KfW to provide liquidity to German banks.

The Law Concerning Kreditanstalt für Wiederaufbau (KfW Law) outlined the operations and funding of KfW (KfW 2006). Article 2 of the KfW law dictated that KfW was responsible for providing financing for the achievement of economic and social goals for the German and European economy. The specific areas under KfW's mandate included small and medium-sized enterprises, risk capital, housing, environmental protection, infrastructure, technical progress and innovations, internationally agreed promotional programs, development cooperation, and other promotional areas stated in laws, regulations, or state economic policy assigned by the Federal Republic or a Federal State (KfW 2006, art. 2).

Section 3 of Article 2 of the KfW Law permitted KfW to pursue other financial operations to the extent that they were directly related to the core functions described in Section 1 of Article 2, including those designed to manage and safeguard its liquidity (KfW 2006, art. 2). Given KfW's substantial equity stake, the failure of IKB would have posed a serious threat to the continued viability of KfW (Mitchell 2016, 80).

All German intervention measures were subject to European Commission (EC) State Aid rules. Regarding the KfW liquidity facilities, the EC stated that KfW could not "plausibly revert to a market-economy investor argument" (EC 2009, 44). Deeming the liquidity support to be inseparable from the capital injections and the risk shield, the EC asserted that a private investor would not have accepted significant exposure to IKB without the risk shield (EC 2009).

Regarding the private liquidity facilities provided by the two German regional banks, the EC stated that the facilities were not provided under the direction of the state. The EC did not find any indication that the terms conferred an advantage on IKB, and did not find reason to conclude that these facilities implied granting of State Aid (EC 2009).

Ultimately, the EC's investigation confirmed the view that IKB's issues were a result of "company-specific events" (EC 2009, 47). Furthermore, the EC was not convinced that any systemic effects resulting from IKB's insolvency could have reached the size of "a serious disturbance" in German economy as defined in Article 87(3)(b) of the EC Treaty (EC 2009, 47). With regard to the long-term viability of IKB, the EC determined that the restructuring plan, in particular the sale of IKB to Lone Star, would result in the successful restoration of IKB's long-term viability. Following the sale, Lone Star presented a new business plan that aimed at stabilizing IKB's short-term financial circumstances by securing required liquidity and to restore the bank's long-term stability by reducing its risk exposure and concentrating on its core business. Lone Star (as well as the German government before IKB's sale) planned a number of actions to reduce IKB's risk exposure during the restructuring process, including the withdrawal from involvement in international portfolio investments as well as compensatory measures such as exiting the real estate financing business and divesting a number of subsidiaries (EC 2009).

4. Administration: The state-owned KfW administered the public facilities and large American and German banks provided private liquidity facilities.

The KfW administered the two public liquidity facilities provided to IKB. Additionally, two large US banks provided a liquidity facility as did two regional German banks (EC 2009).

5. Governance: KfW was directly accountable to the German federal minister of finance and federal minister for economics and technology.

The German federal republic and federal states jointly owned KfW, with the federal republic owning 80% and the federal states the remaining 20% (KfW 2006, art. 1). A board of supervisory directors oversaw the conduct of KfW's business and the administration of its assets. The federal minister of finance and the federal minister of economics and technology were appointed by the federal government on a rotating basis as chair and deputy chair. The rest of the body consisted of other federal ministers, appointees of the Federal Council and Parliament, representatives of the private mortgage banks, industry representatives, municipal representatives, and trade union representatives (KfW 2006, art. 7). The board of supervisory directors appointed an executive board which administered KfW's day-to-day business (KfW 2006, art. 6).

6. Communication and Disclosure: German authorities communicated the stability of IKB as they worked to facilitate its sale.

Media coverage reporting a lack of interest for IKB among buyers led to a decline in its share price at the end of January 2008 (AFP 2008). In press conversations following the announcement of a further state capital injection in February 2008 (the third bailout package), the German federal minister of finance emphasized that IKB was stable and that German authorities hoped to facilitate a quick sale. The federal minister of economics and technology said that authorities were aware of multiple parties potentially interested in buying IKB (Sobolewski 2008). Germany notified its intervention measures to the EC on January 15, 2008 (EC 2009).⁸

7. Source and Size of Funding: KfW funded the public facility and received funding support itself from the Ministry of Finance.

KfW funded the liquidity facilities for IKB. Public documents do not provide any indication about the peak usage of the facility by IKB. KfW's total cash outlays for the IKB rescue, including the risk shield and recapitalization, greatly exceeded the size of the liquidity facilities.

Article 4 of the KfW law permitted KfW to fund itself by issuing debt securities and taking loans (KfW 2006, art. 4). The IKB rescue was small relative to KfW's total borrowings, which were EUR 348 billion at the end of 2008.

⁸ This disclosure included information updates to a previous notice sent to the EC on August 3, 2007 (EC 2009).

In its 2007 annual report, KfW reported raising EUR 27.5 billion during that year on capital markets, including EUR 4 billion in US dollars (KfW 2008). In its 2008 annual report, KfW reported increasing its financing volume by 3.6%, providing an additional EUR 2.5 billion to the “German and global economy,” though this was largely related to the risk shields and capital injection given their greater size and scope (KfW 2009a, 7).

On February 15, 2008, the German Ministry of Finance announced a EUR 1.2 billion extraordinary payment to KfW as partial compensation for losses related to the support of IKB. On September 30, 2008, Eurostat announced that KfW rescue measures were being classified as a public sector expenditure ex-post (see Key Design Decision No. 11, Impact on Monetary Policy Transmission) (Deutsche Bundesbank 2009).

The IKB rescue contributed to the erasure of Germany’s small fiscal surplus in March 2008, though the debt-to-GDP ratio remained virtually unchanged (Deutsche Bundesbank 2009; Eurostat 2009).

8. Rates and Fees: The public liquidity facilities charged an interest rate based on the European Interbank Offering Rate, but the details were not public.

All public and private liquidity facilities charged rates based on the European Interbank Offering Rate (EURIBOR). Limited information on specific rates is available because the EC documents describing them are redacted. The EC documents say that the January KfW liquidity facility charged a premium based on EURIBOR, noting that it was in a range, and that the July facility also charged a premium based on EURIBOR that was never less than 100 basis points (bps). The private facility provided by two large US banks also charged EURIBOR plus 100 bps or more (EC 2009).⁹

The EC addressed the risk premium applied to IKB’s liquidity assistance using its “Communication on Reference and Discount Rates” document (EC 2009,44). According to this communication notice from January 2008, and to be made effective in July 2008, the EC adopted a methodology of setting lending rates using a base rate derived from one-year money market rates plus a risk premium. The premium was calculated using the borrower’s creditworthiness and collateral. Figure 2 displays the recommended risk premiums to be applied depending on the borrower’s level of credit rating. The EC said that the credit ratings did not need to be obtained from specific ratings agencies, and national ratings systems or systems used by banks to reflect default rates were acceptable (EC 2008).

⁹ EC documentation gives a range in which both the lower and upper limit are at least 100 basis points (EC 2009).

Figure 2: The EC's Revised Method for Setting Risk Premiums

Loan Margins in Basis Points			
Rating Category	Collateralization		
	High	Normal	Low
Strong (AAA–A)	60	75	100
Good (BBB)	75	100	220
Satisfactory (BB)	100	220	400
Weak (B)	220	400	650
Bad/Financial difficulties (CCC and below)	400	650	1,000

Source: EC 2008.

Given the presence of a risk shield and the general acceptance that IKB was in difficulty, the EC applied the rating category of companies experiencing difficulties in their assessment of the KfW liquidity provision. Additionally, the IKB loan constituted a case of high collateralization. Therefore, the EC concluded that the appropriate risk premium was 400 bps and thus that the liquidity facility provided in January 2008 corresponded to an advantage of more than 300 bps, and the liquidity facility provided in July 2008 corresponded to an advantage of more than 200 bps (EC 2009). This suggests that the January and July facilities charged a premium to EURIBOR of less than 100 and 200 bps, respectively.

One of the facilities provided by a regional German bank charged EURIBOR plus at least 90 bps, with an upper limit of more than 100 bps. A larger facility provided by another regional German bank charged EURIBOR plus more than 50 basis points (EC 2009).

9. Loan Duration: KfW set an end date of March 2011 for the liquidity facilities, though they were ultimately terminated early.

The original termination date of the two KfW facilities was not disclosed. The KfW extended the end date for both public facilities to March 31, 2011, following the sale agreement with Lone Star (KfW 2009b). Annual reports for 2009–10 for both IKB and KfW stated that the two liquidity lines from KfW had been terminated ahead of schedule (IKB 2010; KfW 2010).

The US and German banks offered their liquidity facilities at various durations. The large US banks renewed their facility on a monthly basis, and the documentation does not specify an end date. Both of the regional German banks limited their facilities to one year (EC 2009).

10. Balance Sheet Protection: The KfW set the collateralization level such that there was enough to cover even the worst-case scenario of loan deterioration.

IKB transferred to KfW commercial loan receivables amounting to EUR 1.9 billion as collateral for the first EUR 1.5 billion credit line in 2008, according to its 2007–08 financial statement, meaning it over-collateralized the loan by about one-quarter. The bank did not provide similar information about the second credit line (IKB 2008). EC documentation restricts specific information on collateral requirements, but all facilities had required coverage to be greater than 100%.¹⁰ Authorities established collateral requirements for IKB liquidity facilities with the intention that the collateral would cover KfW even in the worst-case scenario (EC 2009).

The EC stated that the collateral provided by valuable IKB assets was structured in such a way that it would de facto never fall below 100% and therefore there was “an apparent high collateralization and relatively low risk of the liquidity provision” (EC 2009, 44).

11. Impact on Monetary Policy Transmission: KfW did not act as an agent of monetary policy.

As a public development bank, KfW did not participate in guiding German monetary policy. KfW funded its operations primarily through international financial markets (see Key Design Decision No. 7, Source and Size of Funding) (KfW 2009b). KfW’s typical operations included financing small and medium-sized enterprises, housing, and infrastructure projects (see Key design Decision No. 3, Legal Authority) (EC 2009).

12. Other Conditions: The liquidity line was available in euros or dollars.

The liquidity line was available in euros or dollars (IKB 2008).

¹⁰ EC documentation does not explicitly mention greater than 100% collateral requirement for one of the two facilities provided by one of the regional German banks (EC 2009).

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